

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: December 5, 2024

TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	2006-1-CV-065745	National Credit Acceptance, Inc. v. Christin R. Vierra	Order of examination: <u>parties to appear</u> .
LINE 2	23CV417737	Albert Hoxha et al v. Adam Burns	Click on LINE 2 or scroll down for ruling.
LINE 3	23CV412715	Ali Abhari v. Jaguar Land Rover North America, LLC	Motion to compel: <u>parties to appear</u> . Click on LINE 3 or scroll down for tentative decision.
LINE 4	24CV428693	Christopher Novak v. Charles Ross et al.	Click on LINE 4 or scroll down for ruling.
LINE 5	23CV411435	Ke Fang v. Ritula Malhotra	Motion to seal: it appears that notice is not proper for the motion, as service was made on November 13, 2024, which is five days too late. <u>Parties to appear</u> .
LINE 6	24CV432798	Michael Karavastev v. Andrean Karavastev	Motion to “stay” the court’s prior order staying this case: notice is not proper, as the proof of service for the motion appears to be based on the erroneous notion that e-filing documents with this court accomplishes service on all parties. This notion confuses the federal court’s e-filing system (PACER) with the state court’s (admittedly less sophisticated) e-filing system. Moreover, it is clear on the face of the motion that it is an effort to re-litigate the merits of the court’s July 31, 2024 order granting the stay (signed by Judge Pennypacker), as well as the court’s September 26, 2024 order denying reconsideration of the July 31, 2024 order. It is an improper effort to obtain a third bite at the apple. Accordingly, the court DENIES the motion to “stay the stay.”
LINE 7	24CV434209	Ezequiel Ciappolino v. Dmitry Stadlin et al.	Click on LINE 7 or scroll down for ruling.